

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 7, 2026
8:30 a.m./1:30 p.m.

10. JENNIFER STILWELL V. STEPHEN CICCARELLI

PFL20180525

This matter is before the court for hearing of the Request for Order (RFO) filed by the Petitioner on February 10, 2026, to (1) set child custody and visitation, (2) confirm and enforce its continuing and exclusive jurisdiction over this matter, (3) stay all proceedings in the Tribal Court (Pechanga Tribal Court, Case No. ICW-035-25) pending further order of this court; and (4) prohibit the parties from initiating, participating in, or seeking orders from any other court regarding the parties' minor children. The filing of the RFO prompted the court to refer the parties to a CCRC session set for March 12, 2026.

Proof of service filed February 10, 2026, shows the RFO was electronically served upon Respondent on February 09, 2026.

Respondent filed no Responsive Declaration.

The court is in receipt of a CCRC report indicating that neither parent appeared for the appointment as scheduled.

Due to the Petitioner's failure to appear at the scheduled CCRC session, the court drops the matter from the calendar without prejudice.

TENTATIVE RULING #10: DUE TO THE PETITIONER'S FAILURE TO APPEAR AT THE SCHEDULED CCRC SESSION, THE COURT DROPS THE MATTER FROM THE CALENDAR WITHOUT PREJUDICE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6275 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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11. DEENA UTLEY V. KENNETH UTLEY

24FL0820

Respondent filed a Request for Order (RFO) on February 19, 2026, seeking an order for Petitioner to undergo a vocational evaluation. Respondent requests the court order Petitioner to bear the cost of the evaluation solely. Petitioner was served by mail on February 24, 2026.

Petitioner filed a Responsive Declaration on April 15, 2026. Respondent was served electronically on April 15, 2026. Petitioner objects to the request to undergo a vocational evaluation at her own expense. Petitioner asserts, and has included exhibits documenting, that she has been found by the Social Security Administration to be permanently disabled. Further, Petitioner is 62 years old and in poor health. As such, Petitioner asserts it would be inappropriate and wasteful for the court to order a vocational evaluation.

Respondent filed a Reply Declaration on April 28, 2026. It was served the same day. Respondent reiterates his request for a vocational evaluation and brings an additional request for a Defense Medical Examination under Code of Civil Procedure section 2032.320. Respondent has included exhibits as attachments, which include unredacted bank statements.

Petitioner filed an Objection on April 29, 2026. Respondent was served the same day. Petitioner objects to the court considering Respondent's request for a medical examination, as it is beyond the scope of the original RFO. Further, Petitioner requests the unredacted bank statements contained in Respondent's exhibit be placed under seal.

Respondent filed an Amended Reply on April 30, 2026 along with a Request to Seal the original Reply, due to the unredacted bank statements. The Amended Reply includes the statements with the appropriate redactions.

The court has read and considered the filings as outlined above. The court grants the request to seal the original Reply Declaration filed on April 28th due to the unreacted bank statements. The court grants the request for the vocational evaluation. Petitioner shall participate in a vocational evaluation as requested by Respondent. Respondent is directed to pay for the evaluation, subject to reallocation.

The court denies Respondent's request for a Medical Examination pursuant to Code Civil Procedure section 2032.320. The court finds the request to be beyond the scope of the original RFO and therefore, it is being denied without prejudice.